

REQUEST FOR QUOTATION (THIS IS NOT AN ORDER)			THIS RFQ ☒ IS ☐ IS NOT A SMALL BUSINESS SET-ASIDE			PAGE 1 OF 41 PAGES	
1. REQUEST NUMBER 140G0225Q0115		2. DATE ISSUED 04/20/2026		3. REQUISITION/PURCHASE REQUEST NUMBER 0044020600		4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG. 1	
5a. ISSUED BY USGS OAG DENVER ACQUISITION BRANCH PO BOX 25046 204 DENVER FEDERAL CENTER DENVER CO 80225-0046						6. DELIVER BY (Date)	
5b. FOR INFORMATION CALL (NO COLLECT CALLS)						7. DELIVERY ☒ FOB DESTINATION ☐ OTHER (See Schedule)	
NAME Justice Pryor			TELEPHONE NUMBER AREA CODE 000 NUMBER 000-0000			9. DESTINATION	
8. TO:						a. NAME OF CONSIGNEE USGS Fort Collins Science Center	
a. NAME			b. COMPANY			b. STREET ADDRESS 2150 CENTRE AVENUE, BUILDING C	
c. STREET ADDRESS						c. CITY FORT COLLINS	
d. CITY			e. STATE		f. ZIP CODE		d. STATE CO e. ZIP CODE 80526-8118
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS (Date) 04/30/2026 1700 ED			IMPORTANT: This is a request for information and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or service. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotation must be completed by the quoter.				
11. SCHEDULE (Include applicable Federal, State and local taxes)							
ITEM NUMBER (a)	SUPPLIES/SERVICES (b)			QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
00010	Period of Performance: 05/01/2026 to 01/31/2031 Brand Name Illumina MiSeq i100 Plus System shall be in accordance with the attached specifications. Product/Service Code: 6640 Product/Service Description: LABORATORY EQUIPMENT AND SUPPLIES			1	EA		
00020	Option Year One (5/1/27 - 4/30/28). Services, non-personal to provide all plant, equipment, labor, supervision, and materials (unless otherwise provided Continued...			1	EA		
12. DISCOUNT FOR PROMPT PAYMENT				a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS NUMBER PERCENTAGE
NOTE: Additional provisions and representations ☐ are ☐ are not attached.							
13. NAME AND ADDRESS OF QUOTER				14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION		15. DATE OF QUOTATION	
a. NAME OF QUOTER				16. SIGNER			
b. STREET ADDRESS							
c. COUNTY				a. NAME (Type or print)		b. TELEPHONE AREA CODE	
d. CITY				e. STATE		f. ZIP CODE	
				c. TITLE (Type or print)		NUMBER	

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	herein) necessary to provide extended service and maintenance for Brand Name Illumina MiSeq i100 Plus. (Option Line Item) Anticipated Exercise Date 05/01/2027 Product/Service Code: 6640 Product/Service Description: LABORATORY EQUIPMENT AND SUPPLIES Period of Performance: 05/01/2027 to 04/30/2028				
00030	Option Year Two (5/1/28 - 4/30/29). Services, non-personal to provide all plant, equipment, labor, supervision, and materials (unless otherwise provided herein) necessary to provide extended service and maintenance for Brand Name Illumina MiSeq i100 Plus. (Option Line Item) Anticipated Exercise Date 05/01/2028 Product/Service Code: 6640 Product/Service Description: LABORATORY EQUIPMENT AND SUPPLIES Period of Performance: 05/01/2028 to 04/30/2029	1	EA		
00040	Option Year Three (5/1/29 - 4/30/30). Services, non-personal to provide all plant, equipment, labor, supervision, and materials (unless otherwise provided herein) necessary to provide extended service and maintenance for Brand Name Illumina MiSeq i100 Plus. (Option Line Item) Anticipated Exercise Date 05/01/2029 Product/Service Code: 6640 Product/Service Description: LABORATORY EQUIPMENT AND SUPPLIES Period of Performance: 05/01/2029 to 04/30/2030	1	EA		
00050	Option Year Four (5/1/30 - 4/30/31). Continued...	1	EA		

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NAME OF OFFEROR OR CONTRACTOR		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00060	Services, non-personal to provide all plant, equipment, labor, supervision, and materials (unless otherwise provided herein) necessary to provide extended service and maintenance for Brand Name Illumina MiSeq i100 Plus. (Option Line Item) Anticipated Exercise Date 05/01/2030 Product/Service Code: 6640 Product/Service Description: LABORATORY EQUIPMENT AND SUPPLIES Period of Performance: 05/01/2030 to 04/30/2031 Six Month Extension (5/1/31 - 10/31/31). Services, non-personal to provide all plant, equipment, labor, supervision, and materials (unless otherwise provided herein) necessary to provide extended service and maintenance for Brand Name Illumina MiSeq i100 Plus. (Option Line Item) Anticipated Exercise Date 05/01/2031 Product/Service Code: 6640 Product/Service Description: LABORATORY EQUIPMENT AND SUPPLIES Period of Performance: 05/01/2031 to 10/31/2031 Contract Specialist: Justice Pryor, justice_pryor@ios.doi.gov Contracting Officer: Trisha Beals, trisha_beals@ios.doi.gov	1	EA		

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Brand Name Salient Characteristics**Brand Name Illumina MiSeq i100 Plus System specifications:**

- Utilizes XLEAP-SBS chemistry
- Flexible sequencing with four flow cell options and 10 reagent configurations
- Outputs ranging from 1.5 to 30 Gb
- Read lengths from 1 x 100 bp to 2 x 300 bp
- Provide same-day results, with runtimes from 4-15.5 hours
- Suitable for a variety of sequencing methods including (but not limited to): Amplicon-based targeted sequencing, Enrichment-based targeted sequencing, small whole-genome sequencing, shotgun and shallow shotgun metagenomics, 16S amplicon sequencing, RNA sequencing, 3' gene expression, targeted RNA panels, library QC, and pathogen detection
- Room temperature shipping and storage of consumables
- Load-and -go consumables
- Automated onboard denaturation
- Automated onboard cluster generation
- Automated onboard reconstitution of lyophilized reagents that does not require a hookup to an external water line
- No wash maintenance
- Simplified waste disposal with formamide free reagents
- Sequencing run setup in only three steps and in under 20 minutes
- Multiple flow cell configurations enabling sequencing of 1.5 Gb to 30 Gb and up to 100 million single reads per run, providing output scalable for different project needs
- Generation of high-quality data with > 90% of bases with Q-Scores ≥ 30 at 2 x 150 bp read length and > 80% of bases with Q-scores ≥ 40
- Paired-end capability directly in the flow cell without additional intervention
- Intuitive touch screen interface with HD touch screen for viewing run progress and sequencing performance metrics on the instrument

Additional Salient Characteristics:

- Small footprint with a size under 30 in x 16 in x 18 in (H x W x D)
- Same day results with run times from ~4-15.5 hours
- Ready to use cartridges with flow cells and reagents integrated in a single cartridge to simplify setup and eliminate washes.
- Room temperature shipment and storage of reagents
- Formamide-free reagents
- Simplified workflow with run set up that requires only three steps completed in under 20 minutes
- Self-installable by the customer, so doesn't require installation services
- One Year warranty, including parts and labor, and 4 option years of service

Place of Performance

The instrument will be shipped to:

Fort Collins Science Center
2150 Center Ave, Bldg C
Fort Collins, CO 80526

Pricing:

Illumina MiSeq i100 Plus System with One Year Warranty (Base Year): _____

Option Year 1:

Option Year 2:

Option Year 3:

Option Year 4:

6-Month Extension:

(End Salient Characteristics)

CLAUSES

Section 508 Compliance

Benchtop Sequencer (MiSeq i100 Plus)

E206 Hardware

E206.1 General. Where components of ICT are hardware and transmit information or have a user interface, such components shall conform to the requirements in Chapter 4.

E207 Software

E207.1 General Where components of ICT are software and transmit information or have a user interface, such components shall conform to E207 and the requirements in Chapter 5

Exception from E207.1 General: Software that is assistive technology and that supports the accessibility services of the platform shall not be required to conform to the requirements in Chapter 5.

E207.2 WCAG Conformance User interface components, as well as the content of platforms and applications, shall conform to Level A and Level AA Success Criteria and Conformance Requirements in WCAG 2.0 (incorporated by reference, see 702.10.1).

Exceptions from E207.2 WCAG Conformance:

Software that is assistive technology and that supports the accessibility services of the platform shall not be required to conform to E207.2.

Non-web software shall not be required to conform to the following four Success Criteria in WCAG 2.0: 2.4.1 Bypass Blocks; 2.4.5 Multiple Ways; 3.2.3 Consistent Navigation; and 3.2.4 Consistent Identification.

Non-Web software shall not be required to conform to Conformance Requirement 3 Complete Processes in WCAG 2.0.

E302 Functional Performance Criteria

302.1 Without Vision. Where a visual mode of operation is provided, ICT shall provide at least one mode of operation that does not require user vision.

302.2 With Limited Vision. Where a visual mode of operation is provided, ICT shall provide at least one mode of operation that enables users to make use of limited vision.

302.3 Without Perception of Color. Where a visual mode of operation is provided, ICT shall provide at least one visual mode of operation that does not require user perception of color.

302.4 Without Hearing. Where an audible mode of operation is provided, ICT shall provide at least one mode of operation that does not require user hearing.

302.5 With Limited Hearing. Where an audible mode of operation is provided, ICT shall provide at least one mode of operation that enables users to make use of limited hearing.

302.6 Without Speech. Where speech is used for input, control, or operation, ICT shall provide at least one mode of operation that does not require user speech.

302.7 With Limited Manipulation. Where a manual mode of operation is provided, ICT shall provide at least one mode of operation that does not require fine motor control or simultaneous manual operations.

302.8 With Limited Reach and Strength. Where a manual mode of operation is provided, ICT shall

provide at least one mode of operation that is operable with limited reach and limited strength.

302.9 With Limited Language, Cognitive, and Learning Abilities. ICT shall provide features making its use by individuals with limited cognitive, language, and learning abilities simpler and easier.

503 Applications

503.1 General Applications shall conform to 503.

Instructions to Offerors

Provide an Accessibility Conformance Report (ACR) for each commercially available Information and Communication Technology (ICT) item offered through this contract. Create the ACR using the Voluntary Product Accessibility Template Version 2.1 or later, located at <https://www.itic.org/policy/accessibility/vpat>. Complete each ACR in accordance with the instructions provided in the VPAT template. Each ACR must address the applicable Section 508 requirements referenced in the Work Statement. Each ACR shall state exactly how the ICT meets the applicable standards in the remarks/explanations column, or through additional narrative. All "Not Applicable" (N/A) responses must be explained in the remarks/explanations column or through additional narrative. Address each standard individually and with specificity, and clarify whether conformance is achieved throughout the entire ICT Item (for example - user functionality, administrator functionality, and reporting), or only in limited areas of the ICT Item. Provide a description of the evaluation methods used to support Section 508 conformance claims. The agency reserves the right, prior to making an award decision, to perform testing on some or all of the Offeror's proposed ICT items to validate Section 508 conformance claims made in the ACR.

Describe your approach to incorporating universal design principles to ensure ICT products or services are designed to support disabled users.

Describe plans for features that do not fully conform to the Section 508 Standards.

Describe "typical" user scenarios and tasks, including individuals with disabilities, to ensure fair and accurate accessibility testing of the ICT product or service being offered.

Acceptance Criteria

Prior to acceptance, the government reserves the right to perform testing on required ICT items to validate the offeror's Section 508 conformance claims. If the government determines that Section 508 conformance claims provided by the offeror represent an inaccurate level of conformance than what is actually delivered to the agency, the government shall, at its option, require the offeror to remediate the delivered item to align with the required Section 508 conformance claims prior to acceptance.

FISMA 18-Point Checklist IT Security Guidelines

COTS Hardware or Software	Development or Maintenance of Custom Applications	Outsourced IT Services or On-site Support	Requirements herein are incorporated as part the Statement of Work/ Performance Work Statement: Benchtop next generation sequencer (MiSeq i100 Plus System)
N/A	☒	☐	Background Investigations. The Contractor shall perform in accordance with clause "Security Requirements: Facility Access and Information Technology."
N/A	☒	Contractor will have access to Privacy Act System of Records - Work under	Non-disclosure Agreement. Prior to receiving access to USGS computers, contractor employees shall be required to sign nondisclosure or other system security agreements, depending on the systems to be used and level of access granted. Applies whenever any contractor employee has unsupervised access to a USGS system (even if only basic network, internet or

COTS Hardware or Software	Development or Maintenance of Custom Applications	Outsourced IT Services or On-site Support	Requirements herein are incorporated as part the Statement of Work/ Performance Work Statement: Benchtop next generation sequencer (MiSeq i100 Plus System)
		this contract will involve design, development or operation of (access to) system(s) of records containing personal information protected by the Privacy Act (5 U.S.C. Section 552a).	email or will develop custom applications) such as: • User Access to USGS IT Systems known to contain sensitive or proprietary data • IT Support services (greater than user access) • Development or Maintenance of Custom Applications • On-site contractor support and management of IT system • Off-site contractor Oversight and Management of IT System • IT Security Services Privacy Act System: <i>[Identify covered system(s) to which the contractor may have access]</i> Work to be performed: <i>[Summarize nature of the contractor's use of such records, such as]</i> • User-level access to system containing protected records • Operation or maintenance of Privacy Act System of records or computers hosting such system • Design or modification of a Privacy Act system of records] The contractor is not required or permitted to respond to requests for Privacy Act data or to make decisions about releases of data under the Act. Contractor shall ensure its employees are instructed to safeguard against improper use or release of such data and advise them that violation of the Act may involve criminal penalties. The contractor will comply with FAR clause 52.224-2, Privacy Act, incorporated herein by reference and with DOI Privacy Act regulations at 43 CFR 2, Subpart D
N/A	☒	☐	Training. The Contractor shall perform in accordance with clause "Security Requirements: Facility Access and Information Technology" - Contractor employees must successfully complete DOI's end-user computer security awareness training prior to being granted access to DOI data or being issued a user account. Training must be renewed annually. Additionally, the contract employees must sign a Statement of Responsibility (SOR) that states they have read the appropriate Rules of Behavior and other applicable Information security policies.
N/A	☐	☐	Personnel Changes. The Contractor shall perform in accordance with clause "Security Requirements: Facility Access and Information Technology" - The contractor must notify the COR immediately when an employee working on a DOI system is reassigned or leaves the contractor's employ. Applies whenever any contractor employee has unsupervised

COTS Hardware or Software	Development or Maintenance of Custom Applications	Outsourced IT Services or On-site Support	Requirements herein are incorporated as part the Statement of Work/ Performance Work Statement: Benchtop next generation sequencer (MiSeq i100 Plus System)
			access to a USGS system (even if only basic network, internet or email or will develop custom applications) such as: • User Access to USGS IT Systems known to contain sensitive or proprietary data • IT Support services (greater than user access) • Development or Maintenance of Custom Applications * • On-site contractor support and management of IT system • Off-site contractor Oversight and Management of IT System • IT Security Services * *May not be applicable for off-site performance.
N/A	☐	☐	Contractor Location. The Contractor shall perform in accordance with clause “Security Requirements: Facility Access and Information Technology.” Applies whenever any contractor employee has unsupervised access to a USGS system (even if only basic network, internet or email or will develop custom applications) such as: • User Access to USGS IT Systems known to contain sensitive or proprietary data • IT Support services (greater than user access) • Development or Maintenance of Custom Applications • On-site contractor support and management of IT system • Off-site contractor Oversight and Management of IT System • IT Security Services No portion of the services to be performed hereunder may be performed outside the United States without the express written permission of the Contracting Officer. If services are proposed to be performed abroad, the Contractor shall provide an acceptable security plan that addresses mitigation of problems related to communication, control, and protecting the confidentiality, integrity, and availability of IT systems and information. A Security Plan Template is available upon request from the Contracting Officer.

COTS Hardware or Software	Development or Maintenance of Custom Applications	Outsourced IT Services or On-site Support	Requirements herein are incorporated as part the Statement of Work/ Performance Work Statement: Benchtop next generation sequencer (MiSeq i100 Plus System)
N/A	☐	N/A	Applicable Standards. The Contractor shall perform in accordance with clause “Security Requirements: Facility Access and Information Technology” - Contractor must follow the DOI System Development Life Cycle (SDLC), NIST SP 800-64 and the DOI SDLC Security Integration Guide.
N/A	☒	☐	Asset Valuation-Security Categorization: The Contractor shall perform in accordance with clause “Security Requirements: Facility Access and Information Technology.” ☐ User Access to USGS IT Systems – The Government is responsible for security categorization on USGS systems to which the Contractor may have access under this contract. ☐ IT Support Services greater than User-Level Services Choose one: → ☐ The Government is responsible for security categorization on USGS systems to which the Contractor may have access under this contract. -> ☐ The Government has defined the [insert name of system to be developed, operated or maintained by the contractor] to be a [Major Application], [Minor Application] or [General support system] as defined in OMB Circular A-130, Appendix III and NIST SP800-53. The following risk and sensitivity levels have been assigned based on the FIPS 199 and the NIST SP 800-60. Mission impact: Data sensitivity: Risk level: Bureau/departmental/national criticality: ☐ Off-Site Oversight and Management of IT System- The Contractor shall use the FIPS 199 and the NIST SP 800- 60 to determine information types and security categorization based on mission impact, data sensitivity, risk level, and bureau / departmental / national criticality for Contractor-owned and operated systems used to provide services under this contract. Solicitations must include either the complete publication or a reference to public facilities, such as a website or office, where it may be accessed. ☐ IT Security Services - Applies only if the purpose of the

COTS Hardware or Software	Development or Maintenance of Custom Applications	Outsourced IT Services or On-site Support	Requirements herein are incorporated as part the Statement of Work/ Performance Work Statement: Benchtop next generation sequencer (MiSeq i100 Plus System)
			contract includes obtaining asset valuation services. The Contractor shall use the FIPS 199 and the NIST SP 800- 60 to determine information types and security categorization based on mission impact, data sensitivity, risk level, and bureau / departmental / national criticality for Contractor-owned and operated systems used to provide services under this contract. Solicitations must include either the complete publication or a reference to public facilities, such as a website or office, where it may be accessed.
☒ YES	☐ The Government shall be granted unlimited rights in software or data produced hereunder as described in FAR clause 52.227-17, Rights in Data—Special Works , incorporated by reference herein.	☐ Select either COTS or custom software language as applicable. If both apply, identify software/data deliverables governed by each clause.	Property Rights. 1. For Federal Supply Schedule orders or orders under an existing contract, rights to software acquired hereunder are set forth in the basic contract. 2. For open market contracts, the Government's rights in software delivered hereunder shall be as described in software developer's commercial software license agreement or the clause FAR 52.227-19, Commercial Computer Software-Restricted Rights, whichever is greater.
N/A	☐	☐	Independent Verification and Validation (IV&V). The Government is responsible for independent software verification and validation prior to being moved into production. On-Site Contractor Support and Management of IT System Choose one: → ☐ Software will be independently verified and validated by the Government or another selected contractor prior to being moved into production. → ☐ Contractor will ensure that independent verification and validation is performed on software deployed on contractor managed systems containing USGS data, in accordance with DOI SDLC Security Integration Guide ☐ Off-Site Contractor Operation and Management of IT System-Contractor will ensure that independent verification and validation is performed on software deployed on contractor managed systems containing USGS data, in accordance with

COTS Hardware or Software	Development or Maintenance of Custom Applications	Outsourced IT Services or On-site Support	Requirements herein are incorporated as part the Statement of Work/ Performance Work Statement: Benchtop next generation sequencer (MiSeq i100 Plus System)
			DOI SDLC Security Integration Guide ☐ IT Security Service - Applies only if the purpose of the contract includes obtaining IV&V services.
N/A	☐ Applies if the purpose of the contract includes obtaining C&A services.	☐	Certification & Accreditation. ☐ User Access to USGS IT Systems or IT Supports Services (Greater than User Access) Certification and Accreditation on USGS systems to which the Contractor may have access under this contract will be conducted by the Government or another of its contractors. ☐ Development or Maintenance of Custom Applications The contractor will perform Certification and Accreditation (C&A) services on the application developed or maintained hereunder prior to going into production. The application must be re-accredited every three years or whenever there is a major change that affects security. C&A documents will be provided to the COR in both hard copy and electronic forms. The contractor must follow NIST SP 800-37, 800-18, 800-30, 800-60, 800-53A, Federal Information Processing Standard (FIPS) 199 and 200, the associated DOI guides/templates, the DOI Security Test & Evaluation (ST&E) Guide, and the DOI Privacy Impact Assessment. NIST documents are available on the internet at http://csrc.nist.gov/publications/nistpubs/ FIPS documents are available on the internet at http://csrc.nist.gov/publications/nistpubs/. The contractor may request copies of DOI documents by contacting the Contracting Officer. The government reserves the right to conduct the ST&E using either Government personnel or an independent contractor. The contractor will take immediate and timely action to correct or mitigate any weaknesses discovered as necessary to bring the application or system into compliance with the above requirement. ☐ On-Site Contractor Support and Management of IT System or Off-Site Contractor Operation and Management of IT System The Contractor must maintain systems that are compliant with NIST SP 800-18, 800-30, 800-37, 800-53A, 800-60, Federal Information Processing Standard (FIPS) 199 and 200, the associated DOI guides/templates, the DOI Security Test & Evaluation (ST&E) Guide, and the DOI Privacy Impact Assessment. As required by the above, Major Applications and General Support Systems shall be certified and accredited (C&A) prior to going into production and re-accredited every three years or whenever there is a major change that affects security. C&A documents will be provided to the COR in both

COTS Hardware or Software	Development or Maintenance of Custom Applications	Outsourced IT Services or On-site Support	Requirements herein are incorporated as part the Statement of Work/ Performance Work Statement: Benchtop next generation sequencer (MiSeq i100 Plus System)
			hard copy and electronic forms. NIST documents are available on the internet at http://csrc.nist.gov/publications/nistpubs/ . The contractor may request copies of DOI documents by contacting the Contracting Officer. The government will reserve the right to conduct the ST&E, using either Government personnel or an independent contractor. The contractor will take immediate and timely action to correct or mitigate any weaknesses discovered as necessary to bring the application or system into compliance with the above requirement.
N/A for COTS HW & SW, User Access to USGS IT Systems (other than IT services), IT Support Services (User Level or greater access)	N/A	☐	Internet Logon Banner. The Contractor shall perform in accordance with clause "Security Requirements: Facility Access and Information Technology." ☐ Development or Maintenance of Custom Applications OR On-Site Contractor Support and Management of IT System OR Off-site Contractor Oversight and Management of IT System- Web-based applications developed or maintained under this contract must contain a USGS approved logon banner: https://portal.doi.net/CIO/ITPMgmt/Documents/ITStandards/IT Security/DOI Security Control Standards (based on NIST SP 800-53 Revision 3)/Access Control v1.4.pdf
N/A	☒	☐	Incident Reporting. The Contractor shall perform in accordance with contract clause "Security Requirements: Facility Access and Information Technology" - The contractor must report computer security incidents affecting DOI data or systems in accordance with the DOI Computer Incident Response Guide.
YES	☒	☐	Quality Control. All software or hardware purchased must be free of malicious code such as viruses, Trojan horse programs, worms, spyware, etc. Validation of this must be written into the contract.
N/A	N/A	☐	Self-Assessment. The Contractor shall perform in accordance with contract clause "Security Requirements: Facility Access and Information Technology" - The contractor must conduct an annual self-assessment in accordance with annual DOI guidance on all information systems in production.
N/A	☐	☐	Vulnerability Analysis. Vulnerability Analysis on USGS systems to which the Contractor may have access under this contract will be conducted by the Government or another of its

COTS Hardware or Software	Development or Maintenance of Custom Applications	Outsourced IT Services or On-site Support	Requirements herein are incorporated as part the Statement of Work/ Performance Work Statement: Benchtop next generation sequencer (MiSeq i100 Plus System)
			contractors.
N/A	☒	☐	Logon Banner. Contractor employees who access DOI information systems must acknowledge a government-approved legal warning banner prior to logging on to the system. This includes contractor owned information systems hosting DOI data.
N/A	☒	☐	Security Controls. The Contractor shall perform in accordance with contract clause “Security Requirements: Facility Access and Information Technology” – The Contractor shall ensure compliance with the security control requirements of the current version of NIST SP 800-53, Rev.1, which are applicable to the security categorization of the data or system. FIPS 199 and the NIST SP 800-60 will be used to determine information types and security categorizations.
N/A	N/A	☐	Contingency Plan. The Contractor shall perform in accordance with contract clause “Security Requirements: Facility Access and Information Technology.” For IT Support Services: The Contractor shall submit a contingency plan in accordance with NIST SP 800-34 and DOI IT Systems Contingency Plan Guide.

52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far/>

Clause	Title	Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
52.204-6	Unique Entity Identifier	Oct 2016
52.204-9	Personal Identity Verification of Contractor Personnel	Jan 2011
52.204-12	Unique Entity Identifier Maintenance	Oct 2016
52.204-13	System for Award Management Maintenance	Oct 2018
52.204-18	Commercial and Government Entity Code Maintenance	Aug 2020
52.204-19	Incorporation by Reference of Representations and Certifications	Dec 2014
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial	Nov 2023

52.227-17	Rights in Data-Special Works	Dec 2007
52.232-39	Unenforceability of Unauthorized Obligations	Jun 2013
52.232-40	Providing Accelerated Payment to Small Business Subcontractors	Mar 2023

(End of clause)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders—Commercial Products and Commercial Services. (MARCH 2026)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).
- (6) [52.233-3](#), Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☐ (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and [10 U.S.C. 4655](#)).
- ☒ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).
- ☒ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ☒ (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).
- ☐ (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101](#) note).
- ☐ (6) [Reserved].

- ☐ (7) [52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☒ (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- ☐ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II).
- ☒ (11) (i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).
- ☐ (ii) Alternate I (Dec 2023) of [52.204-30](#).
- ☒ (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) ([31 U.S.C. 6101 note](#)).
- ☐ (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).
- ☐ (14) [Reserved].
- ☐ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) ([15 U.S.C. 657a](#)).
- ☐ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]
- ☒ (18) (i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (Mar 2020) of [52.219-6](#).
- ☐ (19) (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (Mar 2020) of [52.219-7](#).
- ☐ (20) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025)([15 U.S.C. 637](#)(d)(2) and (3)).
- ☐ (21) (i) [52.219-9](#), Small Business Subcontracting Plan (Jan 2025) ([15 U.S.C. 637](#)(d)(4)).
- ☐ (ii) Alternate I (Nov 2016) of [52.219-9](#).
- ☐ (iii) Alternate II (Nov 2016) of [52.219-9](#).
- ☐ (iv) Alternate III (Jun 2020) of [52.219-9](#).
- ☐ (v) Alternate IV (Jan 2025) of [52.219-9](#).
- ☐ (22)
- ☐ (i) [52.219-13](#), Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (Mar 2020) of [52.219-13](#).
- ☐ (23) [52.219-14](#), Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- ☐ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

- ___ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- ___ ☒ (26) (i) [52.219-28](#), Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).
- ___ (ii) Alternate I (Mar 2020) of [52.219-28](#).
- ___ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ___ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ___ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) ([15 U.S.C. 644\(r\)](#)).
- ___ ☒ (30) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).
- ___ ☒ (31) [52.222-3](#), Convict Labor (Jun 2003) (E.O. 11755).
- ___ ☒ (32) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Mar 2026)([E.O. 13126](#)).
- ___ ☒ (33) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).
- ___ ☒ (34) (i) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).
- ___ (ii) Alternate I (Feb 1999) of [52.222-26](#).
- ___ (35) (i) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- ___ (ii) Alternate I (Jul 2014) of [52.222-35](#).
- ___ ☒ (36) (i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)).
- ___ (ii) Alternate I (Jul 2014) of [52.222-36](#).
- ___ ☒ (37) [52.222-37](#), Employment Reports on Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- ___ ☒ (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- ___ ☒ (39) (i) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ (ii) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ ☒ (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)
- ___ (41)
- ___ (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (ii) Alternate I (May 2008) of [52.223-9](#) (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons

(May 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

☒ (46) [52.223-23](#), Sustainable Products and Services (May 2024) ([E.O. 14057](#), [7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671i](#)).

___ (47) (i) [52.224-3](#) Privacy Training (Jan 2017) ([5 U.S.C. 552](#) a).

___ (ii) Alternate I (Jan 2017) of [52.224-3](#).

___ (48) (i) [52.225-1](#), Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

___ (ii) Alternate I (Oct 2022) of [52.225-1](#).

___ (49) (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301 note](#), [19 U.S.C. 2112 note](#), [19 U.S.C. 3805 note](#), [19 U.S.C. 4001 note](#), [19 U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

___ (ii) Alternate I [Reserved].

___ (iii) Alternate II (Jan 2025) of [52.225-3](#).

___ (iv) Alternate III (Feb 2024) of [52.225-3](#).

___ (v) Alternate IV (Oct 2022) of [52.225-3](#).

☒ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).

☒ (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

___ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

___ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

☒ (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).

___ (56) [52.229-12](#), Tax on Certain Foreign Procurements (Feb 2021).

___ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).

___ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).

☒ (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).

- ___ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ___ (61) [52.232-36](#), Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ___ (62) [52.239-1](#), Privacy or Security Safeguards (Aug 1996) ([5 U.S.C. 552a](#)).
- ___ (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- ☒ (64) [52.242-5](#), Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- ___ (65)
- (i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631).
- ___ (ii) Alternate I (Apr 2003) of [52.247-64](#).
- ___ (iii) Alternate II (Nov 2021) of [52.247-64](#).
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- [Contracting Officer check as appropriate.]
- ___ (1) [52.222-41](#), Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- ___ (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ___ (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ___ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29U.S.C.206](#) and 41 U.S.C. chapter 67).
- ☒ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ___ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- ___ (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- ☒ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- ___ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- ___ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)).
- (d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain

the clause at [52.215-2](#), Audit and Records-Negotiation.

- (1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.
- (2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.
- (3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.
- (e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-
 - (i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).
 - (ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).
 - (iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
 - (iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
 - (v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
 - (vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
 - (vii) (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).
 - (B) Alternate I (Dec 2023) of 52.204-30.
 - (viii) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

- (ix) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).
- (x) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).
- (xi) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- (xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- (xiii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- (xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).
- (xv) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).
- (xvi) (A) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).
(B) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xix) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([E.O. 12989](#)).
- (xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (xxii) (A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).
(B) Alternate I (Jan 2017) of [52.224-3](#).
- (xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).
- (xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).
- (xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- (xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).
- (2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates

specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

- (a) The Government may extend the term of this contract by written notice to the Contractor before the contract expires; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.
- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (a) The performance required herein shall be subject to the technical direction of the Technical Liaison (TL) as identified below.

As used herein, "technical direction" is defined as direction to the contractor that fills in details, suggests possible lines of approach,

or otherwise supplements the scope of the work set forth herein and shall not constitute a new assignment, and does not supersede or modify any article or clause of this contract.

- (b) The Technical Liaison is not authorized to perform, formally or informally, any of the following actions:
 - (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
 - (2) Waive or agree to modification of the delivery schedule;
 - (3) Make any final decision on any contract matter subject to the Disputes Clause;
 - (4) Terminate, for any reason, the contractor's right to proceed;
 - (5) Obligate in any way, the payment of money by the Government. Only a warranted Contracting Officer is authorized to obligate funds on this or any other contract action.
- (c) The contractor shall immediately notify the Contracting Officer in writing if the Technical Liaison has taken an action (or fails to take action) or issues direction (written or oral) that the contractor considers to exceed the above limitations.
- (d) The Technical Liaison assigned for this contract is identified on the Standard Form 347 contract/order award document.
- (e) Only the Contracting Officer may designate a different Technical Liaison.

(End of clause)

GS0199 Prevention of Malicious Code (JUN 2018)

- (a) Definitions

Malicious code is a computer code developed for the purpose of causing some form of intentional damage to computer systems or networks. Malicious code may be a complete program or code imbedded in software programs that appear to provide useful functions. The term includes computer viruses and other destructive programs, such as "Trojan Horses" and network "worms."

- (b) The contractor must have in place an anti-virus procedure to ensure that media supplied is uncontaminated by malicious code.
- (c) The contractor is required to scan all delivered software to insure it is free of malicious code prior to its installation or operation on USGS-owned computers or contractor-owned computers connected to USGS computer systems or networks. Contractors using diagnostics software disks or connecting to a non-

USGS computer while performing repairs or upgrades to a USGS computer will scan the serviced computer's drive(s) to insure they are free of malicious code upon completion of the service call, or prior to return of serviced equipment, if servicing is performed off-site.

(End of clause)

GS1374 Certificate of Maintainability (JUL 2001)

- a) Equipment furnished herein must be delivered with a valid Certificate of Maintainability from the original equipment manufacturer (OEM). If such certificate is subject to a requirement for installation by the OEM, such installation may not commence until the OEM's representative is on site.
- b) Prior to termination or expiration of this contract or removal from this contract of any equipment/system, the equipment shall be subjected to an inspection by the OEM. If the equipment/system is not in good electrical, mechanical, or operating condition upon inspection by the OEM, the contractor agrees to return the equipment/system to a level suitable for OEM maintenance or to reimburse the Government for any charges including, but not limited to, travel, parts, and labor required to return the equipment/system to good mechanical, electrical, and operating condition as established by the OEM. Upon establishment by the OEM that the equipment/system is at a suitable level for OEM maintenance, the contractor shall submit, to the Government, a certificate of maintainability for each system/item of equipment.

(End of clause)

Electronic Invoicing and Payment Requirements - (IPP) (April 2013)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is:

<https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

Contractor-Generated, Itemized Invoice

The Contractor must use the IPP website to register, access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of clause)

GS1131 Unilateral Deobligation (MAY 2013)

The contractor shall submit all invoices under this award no later than ninety (90) calendar days after the period of performance has expired, unless a request for extension has been submitted to, and granted by, the Contracting Officer. After 120 calendar days have passed after the expiration of the period of performance, the Contracting Officer reserves the right to issue a unilateral modification deobligating any unexpended funds, and to initiate closeout procedures.

(End of clause)

PROVISIONS

52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/>

52.203.18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements – Representation.	JAN 2017
52.204-7	System for Award Management.	NOV 2024
52.204-17	Commercial and Government Entity Code Reporting.	AUG 2020
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations – Representation.	NOV 2015
52.212-1	Instructions to Offerors – Commercial Products and Commercial Services.	SEP 2023
52.225-25	Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran – Representations and Certifications.	JUN 2020
52.217-5	Evaluation of Options	JUL 1990
52.219-1	Small Business Program Representations	SEP 2021
52.232-18	Availability of Funds	APR 1984

(End of provision)

52.212-2 Evaluation—Commercial Products and Commercial Services. (Nov 2021)

(a) The Government will award a contract from this solicitation to the responsible offeror whose offer conforming to this solicitation will be most advantageous to the government price and other factors considered. Contractor shall be selected according to the following Factors, which are equal in importance. Factors 1 and 2 are of greater importance than price. The following factors shall be used to evaluate offerors:

Factor 1 – Technical Performance and Key Qualifications: Evaluation Criteria: The Government will evaluate the extent to which the offeror's technical approach, staffing, and qualifications demonstrate the capability to successfully perform all services described in the Specifications/Statement of Work. The offeror shall submit a narrative, not copying the Statement of Work/Specifications (not to exceed ten pages) addressing both the Prime contractor and any subcontractors proposed. Narratives will be evaluated on clarity, completeness, and demonstrated understanding of the work requirements.

Criteria include:

(a) Demonstrated Technical Capability:

- Ability to perform specialized removal and installation of engines, including detailed description of methods, supervision plans, tools, equipment, and safety controls.
- Description of workforce experience and technical expertise directly relevant to the required services.
- Identification of key personnel with clearly defined roles and qualifications.

Factor 2 – Past Performance: Evaluation Criteria: The past performance of the offeror on projects for marine engine work same/similar in scope and complexity will be evaluated in the areas of quality and timeliness. Offerors demonstrating a higher level of successful past performance will be more favorably

rated. Offerors shall submit three (3) references for same/similar services performed during the past three years. Offeror **must** provide information for Prime and subcontractor if being used. Reference information shall include:

- Contracting Organization (federal agency, state, or municipality)
- Contract Number
- Project Name and Brief Description
- Project Manager/CO name
- Phone Number
- email address
- Project Magnitude
- Indicate whether the offeror was a subcontractor or prime contractor.

References provided may be contacted by the Government. Their statements will be used in the evaluation of the offeror's quotation. In addition, any information obtained by the Government from references outside of the offeror's quotation may also be used, in a similar manner, in the technical evaluation of the offeror's quotation to the extent appropriate. Past performance information provided by references, from Government records, or from other than the sources identified by the offeror may be used in the evaluation under any or all applicable evaluation factors. Contractor Performance Assessment Reporting System (CPARS) reports be used as a source of past performance information in the source selection process, in addition to any other past performance information required under this solicitation. All past performance information will be used for both the responsibility determination and the best value decision. If an offeror does not have any past performance, they will be rated as "Neutral".

- (b) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services (OCT 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and

for which the worker does not offer himself voluntarily; or

- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under [6 U.S.C. 395\(b\)](#), applied in accordance with the rules and definitions of [6 U.S.C. 395\(c\)](#).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"—

Sensitive technology—

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act ([50 U.S.C. 1702\(b\)\(3\)](#)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

- (1) (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
- (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart [19.14](#)).
- (3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in [38 U.S.C. 101](#)(2), with a disability that is service connected, as defined in [38 U.S.C. 101](#)(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and size standards in this solicitation.
- (2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

- (1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

- (i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and
- (ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and
- (2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

- (1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at [38 U.S.C. 101\(2\)](#)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

- (b) (1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.
- (2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR [52.212-3](#), Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR [4.1201](#)), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR 121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and [\(b\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.*] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.*] [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(5) *Small disadvantaged business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in [13 CFR 124.1001](#).

(6) *Women-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [*Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having

been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

- (ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of [13 CFR 126.616\(a\)](#) through [\(c\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.
- (d) Representations required to implement provisions of Executive Order 11246-
 - (1) Previous contracts and compliance. The offeror represents that-
 - (i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and
 - (ii) It ☐ has, ☐ has not filed all required compliance reports.
 - (2) *Affirmative Action Compliance.* The offeror represents that-
 - (i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or
 - (ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.
- (e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.
- (f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) [52.225-1](#), Buy American-Supplies, is included in this solicitation.)
 - (1) (i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.
 - (ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".
 - (iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).
 - (iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."
- (2) Foreign End Products:

[List as necessary]

- (iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

- (iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR [25.105](#)).

Line Item No. _____

[List as necessary]

- (v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

- (2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II*. If Alternate II to the clause at FAR [52.225-3](#) is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

- (g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American—Free Trade Agreements—Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

- (iii) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#). For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.
- (h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—
- (1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;
 - (2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;
 - (3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and
 - (4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.
- (i) Taxes are considered delinquent if both of the following criteria apply:
- (A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.
 - (B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.
- (ii) *Examples.*
- (A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.
 - (B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.
 - (C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).*
[The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at [22.1503\(b\)](#).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

☐ (i) *The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.*

☐ (ii) *The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.*

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.)
[The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) *Maintenance, calibration, or repair of certain equipment as described in FAR [22.1003-4\(c\)\(1\)](#).*
The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR [22.1003-4\(c\)\(2\)\(ii\)](#)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the

contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

- ☐ (2) *Certain services as described in FAR [22.1003-4](#)(d)(1).* The offeror ☐ does ☐ does not certify that-
- (i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;
 - (ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR [22.1003-4](#)(d)(2)(iii));
 - (iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and
 - (iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.
- (3) If paragraph (k)(1) or (k)(2) of this clause applies–
- (i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and
 - (ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.
- (l) *Taxpayer Identification Number (TIN)* ([26 U.S.C. 6109](#), [31 U.S.C. 7701](#)). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)
- (1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of [31 U.S.C. 7701\(c\)](#) and 3325(d), reporting requirements of [26 U.S.C. 6041](#), 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).
- (2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government ([31 U.S.C. 7701\(c\)\(3\)](#)). If the resulting contract is subject to the payment reporting requirements described in FAR [4.904](#), the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.
- (3) *Taxpayer Identification Number (TIN).*
- ☐ TIN: _____.
- ☐ TIN has been applied for.
- ☐ TIN is not required because:
- ☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;
 - ☐ Offeror is an agency or instrumentality of a foreign government;
 - ☐ Offeror is an agency or instrumentality of the Federal Government.
- (4) *Type of organization.*
- ☐ Sole proprietorship;

- ☐ Partnership;
- ☐ Corporate entity (not tax-exempt);
- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR 1.6049-4;
- ☐ Other _____.

(5) *Common parent.*

- ☐ Offeror is not owned or controlled by a common parent;
- ☐ Name and TIN of common parent:
Name _____.
TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(2) *Representation.* The Offeror represents that—

- (i) It ☐ is, ☐ is not an inverted domestic corporation; and
- (ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

- (i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;
- (ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and
- (iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR [25.703-2\(a\)\(2\)](#) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

- (i) This solicitation includes a trade agreements certification (e.g., [52.212-3\(g\)](#) or a comparable agency provision); and
- (ii) The offeror has certified that all the offered products to be supplied are designated country end products.
- (p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).
- (1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.
- (2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:
 Immediate owner CAGE code: _____.
 Immediate owner legal name: _____.
 (Do not use a "doing business as" name)
- Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.
- (3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:
 Highest-level owner CAGE code: _____.
 Highest-level owner legal name: _____.
 (Do not use a "doing business as" name)
- (q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*
- (1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that–
- (i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or
- (ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.
- (2) The Offeror represents that–
- (i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
- (ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.
- (r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at [52.204-16](#), Commercial and Government Entity Code Reporting.)
- (1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.
- (2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for

all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals*. Applies in all solicitations that require offerors to register in SAM ([12.301](#)(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u) (1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

- (1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".
- (2) The Offeror represents that—
 - (i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
 - (ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

52.216-1 Type of Contract (APR 1984)

The Government contemplates award of a Firm Fixed Price contract resulting from this solicitation.

Brand Name Justification (Redacted)

- 1. Contracting Agency and Activity.** The Department of the Interior, United States Geological Survey, Fort Collins Science Center.
- 2. Nature of Action Being Approved.** The U.S. Geological Survey, Fort Collins Science Center has a requirement for the purchase of a state-of-the-art benchtop next generation sequencer with support and maintenance. Approval is requested for Brand Name Justification for an Illumina MiSeq i100 Plus System with annual service and maintenance. The Benchtop Sequencer can be purchased from any authorized Illumina, Inc. approved reseller.
- 3. Description of Supplies or Services.** The Molecular Ecology Laboratory at the Fort Collins Science Center would like to purchase a benchtop next generation sequencer with 4 optional years of preventative maintenance for after the initial (base) factory warranty expires. The Molecular Ecology Laboratory currently has an Illumina MiSeq benchtop next generation sequencer for massively parallel sequencing, however it was purchased in 2012 and is now at the end of its life-cycle and no longer supported by Illumina. The newer models of sequencers offer 4x faster runtimes, simplified workflows, and reduced environmental impact.
- 4. Estimated Dollar Value.** REDACTED)
- 5. Statutory Authority.** The proposed action may be awarded on a sole source basis under the authority FAR 13.106-1.
- 6. Rationale Supporting Use of Citation in No. 5.** This service is only available from Illumina and the nature of the equipment is such that no other vendor can supply a state-of-the-art benchtop next generation sequencer will allow the Molecular Ecology Laboratory to continue to produce high-quality sequence data in a more efficient way. No other alternative exists for the equipment covered in this procurement.
- 7. Other Information.** N/A
- 8. The Efforts to Identify Additional Sources Including the Market Research Conducted.** There are, in addition to Illumina, resellers of this product. Solicitation 140G0225Q0017 PR 0044002383 was processed in February 2025 but the purchase had to be cancelled due to funding issues. The solicitation resulted in 6 quotes. Market research shows no other product can meet the government's minimum needs as noted in paragraph 6.
- 9. Actions to Overcome Barriers to Competition.** Competition currently exists in the reseller market for these products. The Government must ensure compatibility to pre-existing hardware and software. To the fullest extent possible, the Government shall conduct continuing and future market research to identify alternative products from other manufactures to meet these needs.

10. Recommendation and Certification from Program Office: (REDACTED)

11. Certifications and Approval from the Contracting Officer: (REDACTED)

12. Approvals (REDACTED)

Award:

The award of this requirement shall be made using only the procedures found in Part 13.5 of the Federal Acquisition Regulations (FAR). Award shall be made to the vendor whose quotation, conforming to this RFQ, is determined to be the most advantageous to the government, cost or price and the other non-cost or non-price factors listed above. In determining which quotation offers the greatest value or advantage to the Government, overall price or cost to the Government will be comparable in importance to overall technical merit. Between substantially equal technical quotations, the proposed evaluated price or cost will become the major factor in selection for award. Between acceptable quotations with significant difference in technical rating, a determination will be made as to whether the additional technical merit or benefits reflected by a higher priced quotation warrants payment of the additional price or cost.

A single award shall be made to the vendor whose proposal, conforming to this Solicitation, it determined to be most advantageous to the government, cost or price and other non-cost or non-price factors listed above. In determining which proposal offers the greatest value or advantage to the Government, overall past performance and qualifications will be significantly more important than evaluated price or cost to the Government. Price or cost will become the determining factor between proposals judged to be essentially equal in technical merit. While the Government anticipates award based primarily on technical superiority, no award will be made based on superior technical capability when the proposed cost or price is considered unreasonable or when the additional cost or price is not justified by the advantages of an award based on technical superiority.

The offeror is cautioned to study the Evaluation Factors stated above along with their relative importance. Your proposal package shall address each of the factors listed above since these are the standards against which your proposal will be evaluated. It is the offeror's responsibility to include the appropriate documentation in its proposal package to allow a complete technical and price evaluation. Failure to submit the appropriate documentation may result in the rejection of the offeror's proposal.

All technical proposals shall be separate from pricing proposals. No pricing shall be contained in the technical proposal. Offerors are required to list discounts, if any, as part of their pricing proposal, but separate from the original unit price.

Question Cutoff:

Questions relating to this solicitation shall be presented by e-mail to justice_pryor@ios.doi.gov not later than 12:00 PM (ES) on April 24, 2026. Questions should be worded to avoid disclosing bid strategies or proprietary solutions. The Government will evaluate the questions, and if needed, an Amendment will be issued with the questions received and their associated answers. If further questions arise following the outcome of answers provided to initial questions, the Contracting Officer has sole discretion to determine if a new question closing date will be required. If a new question closing date is approved, an amendment will be posted.

Quotation Submission:

Quote packages are to be received in the contracting office no later than 5:00 P.M. (ES) on April 30, 2026. Quotes are required to be submitted electronically via email to justice_pryor@ios.doi.gov. Do not mail your quote; only electronic quotes will be accepted. The Government reserves the right to cancel this solicitation at any time if necessary.